

Rudra Prasad Nath vs Laxmipriya Mishra on 19 February, 2025

Bench: B. P. Routray, Chittaranjan Dash

IN THE HIGH COURT OF ORISSA AT CUTTACK

MATA No.420 of 2023

Rudra Prasad Nath

....
Mr. A.P.

-versus-

Laxmipriya Mishra

....
Mr. S.R. Mohapatra

CORAM:

JUSTICE B. P. ROUTRAY

JUSTICE CHITTARANJAN DASH

ORDER

19.02.2025 Order No.

02. 1. Heard Mr. A.P. Bose, learned counsel for the Appellant-

Husband and Mr. S.R. Mohapatra, learned counsel for the Respondent-Wife.

2. Present appeal is directed against the order dated 19.10.2023 passed by the learned Judge, Family Court, Dhenkanal in C.P. No.97 of 2023 wherein learned Family Judge has returned the plaint to the Petitioner-Appellant on the ground of lack of territorial jurisdiction.

3. The learned Judge, Family Court, Dhenkanal has proceeded under the conception that, since the Wife is residing at Angul presently, the civil proceeding presented at Dhenkanal by the Husband is not maintainable for want of territorial jurisdiction.

4. The certified copy of the plaint is produced by Mr. A.P. Bose, learned counsel for the Appellant in course of hearing. The same is kept on record.

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5. As seen from the copy of the plaint, it is mentioned that, the marriage was solemnized at Ashirbad Mandap, Station Bazar, Dhenkanal Town and the parties last resided together at village- Gobindpur under Sadar Police Station, Dhenkanal.

6. Section 19 of the Hindu Marriage Act speaks as follows:-

"19. Court to which petition shall be presented.-Every petition under this Act shall be presented to the district Court within the local limits of whose ordinary original civil

jurisdiction--

(i) the marriage was solemnized, or

(ii) the respondent, at the time of the presentation of the petition, resides, or

(iii) the parties to the marriage last resided together, or [(iii-a) in case of the wife is the petitioner, where she is residing on the date of presentation of the petition, or]

(iv) the petitioner is residing at the time of the presentation of the petition, in a case where the respondent is, at that time, residing outside the territories to which this Act extends, or has not been heard of as being alive for a period of seven years or more by those persons who would naturally have heard of him if he were alive."

7. So as per the contingencies prescribed above under Section 19 of the Hindu Marriage Act, the court where the parties last resided together or the marriage was solemnized has also the jurisdiction to entertain the petition under Section 9 or other provisions of the Hindu Marriage Act.

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8. Accordingly, we disagree with the order of learned Judge, Family Court, Dhenkanal returning the plaint for want of territorial jurisdiction. It is needless to observe here that, in our opinion, the Judge, Family Court, Dhenkanal has the jurisdiction to entertain the civil proceeding and so, return of the plaint by him in the impugned order is held illegal.

9. Accordingly, the impugned order dated 19.10.2023 passed by the learned Judge, Family Court, Dhenkanal in C.P. No.97 of 2023 is set aside and the civil proceeding is restored by readmitting the plaint on the file of learned Judge, Family Court, Dhenkanal. Learned Family Court is directed to proceed in accordance with law in the said proceeding.

10. The appeal is allowed to the above extent.

11. An urgent certified copy of this order be granted on proper application.

(B.P. Routray) Judge (Chittaranjan Dash) Judge B.K. Barik Signed by: BASANTA KUMAR BARIK Designation: Secretary Reason: Authentication Location: High Court of Orissa, Cuttack Date: 19-Feb-2025 16:49:49